

ELIZABETH II



1975 CHAPTER xxxiv

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1936, relating to the Royal College of Surgeons of Edinburgh.

[12th November 1975]

WHEREAS the Provisional Order set forth in the schedule hereunto annexed has been made by the Secretary of State under the provisions of the Private Legislation Procedure (Scotland) Act 1936, and it is requisite that the said 1936 c. 52. Order should be confirmed by Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. The Provisional Order contained in the schedule hereunto annexed is hereby confirmed.

Confirmation
of Order in
schedule.

2. This Act may be cited as the Royal College of Surgeons of Edinburgh Order Confirmation Act 1975.

c. xxxiv *Royal College of Surgeons of Edinburgh Order
Confirmation Act 1975*

SCHEDULE

ROYAL COLLEGE OF SURGEONS OF EDINBURGH

Provisional Order to enable Her Majesty to grant a new Charter to the Royal College of Surgeons of Edinburgh; and for purposes in connection therewith.

Whereas by a Seal of Cause granted by the Town Council of Edinburgh on the 1st day of July, 1505, powers and privileges were conferred upon the Craftis of Surregenry and Barbouris as one of the free Incorporations of the City of Edinburgh:

And whereas following various Acts and Charters whereby powers and privileges were successively conferred on the Incorporation of the Chirurgeons and Barbers and on the Brotherhood of Chirurgeon Apothecaries and Apothecaries of Edinburgh and their successors the Royal College of Surgeons of Edinburgh (hereinafter called "the College") it was provided by an Act passed in the 13th year of the reign of Queen Victoria that it should be lawful for her late Majesty to grant and for the College to accept a Charter of new incorporating the College under the name of the Royal College of Surgeons of Edinburgh and with such new and additional powers, privileges and immunities in favour of the College as might by her late Majesty be deemed expedient:

And whereas by Royal Charter under the Seal appointed by the Treaty of Union to be kept and used in Scotland in the place of the Great Seal formerly used there bearing date at the Palace of St. James the 11th day of March, 1851, Her late Majesty Queen Victoria did of new constitute erect and incorporate the then Fellows of the Royal College of Surgeons of the City of Edinburgh and such others as should from time to time be elected Fellows of the College into one body politic and corporate by the name and style of "The Royal College of Surgeons of Edinburgh":

And whereas it is expedient that certain changes should be made in the constitution and government of the College and that Her Majesty should have power, upon receiving a Petition from the College, to grant a new Charter and from time to time to grant the College such supplementary Charters as may be expedient:

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1936:

1936 c. 52.

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary of State orders as follows:—

Short title
and citation.

1. This Order may be cited as the Royal College of Surgeons of Edinburgh Order 1975 and the Act passed in the 13th year of the reign of Queen Victoria intituled "An Act for enabling Her Majesty to grant a New Charter to the Royal College of Surgeons of Edinburgh, and for conferring further Powers on the said College" and this Order may be cited together as the Royal College of Surgeons of Edinburgh Acts 1850 and 1975.

2. It shall be lawful for Her Majesty from time to time, upon Power to receiving a Petition from the College, to grant to the College a new Her Majesty Charter or a supplementary Charter containing such alterations in to grant new the constitution and government of the College and with such new and Charters. additional powers, privileges and immunities in favour of the College as to Her Majesty may seem expedient.

3. The grant of a new Charter or a supplementary Charter by Her Revocations Majesty in pursuance of the foregoing section shall operate as a and repeals. revocation or repeal of the said Act of 1850 and of the said Charter of 1851 respectively so far as the same shall be inconsistent with or repugnant to the said new Charter or supplementary Charter.

4. All costs, charges and expenses of and incidental to the Costs of preparation and obtaining of this Order shall be paid by the College. Order.

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**c. xxxiv. Royal College of Surgeons of Edinburgh Order
Confirmation Act 1975**

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